

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPT067427: IN THE MATTER OF: MONIQUE OSUNA
09/04/2026 in Department 42
Petition**

Motion: Petition to Transfer Structured Settlement Payment Rights

Tentative Ruling:

Pursuant to Cal. Ins. Code section 10137(a)(1) and Cal. Ins. Code section 10139.5(a)(1), as well as 26 USC section 5891(b)(2)(A)(ii), Petitioner asserts that the transfer of structured settlement payment rights in the present matter is fair and reasonable and in the best interests of the Payee, taking into account the welfare and support of the Payee's dependents, if any. In this case, the Payee has one minor dependent.

The transfer complies with the requirements of Cal. Ins. Code section 10134, et seq., and will not contravene other applicable law, does not contravene any applicable statute or order of any court or other government authority, and does not contravene any federal or state, statute or the order of any court or responsible administrative authority.

The Payee has been advised in writing by the Transferee to seek independent professional advice regarding the transfer and has received that advice in writing, a copy of which has been provided to the Court.

Pursuant to Cal. Ins. Code section 10139.5(a)(3), the Petitioner has complied with the notification requirements of Cal. Ins. Code section 10139.5(f)(2), and the Petitioner has provided the Payee with a disclosure statement that complies with Cal. Ins. Code section 10136(b). The transfer agreement complies with Cal. Ins. Code sections 10136(c) and 10138. True and correct copies of the Disclosure Statements received, acknowledged and agreed to by Payee on June 2, 2026 are attached to the Petition. Payee indicates she has read and understands the disclosures.

Pursuant to Cal. Ins. Code section 10139.5(a)(5), the Payee understands the terms of the Transfer Agreement, including the terms set forth in the disclosure statement required by Cal. Ins. Code section 10136(b). Pursuant to Cal. Ins. Code section 10139.5(a)(6), the Payee understands and does not wish to exercise the Payee's right to cancel the Transfer Agreement. Pursuant to Cal. Ins. Code section 10139.3(c), the required documents were served with the petition.

Within the last five years, Payee has neither attempted nor failed to complete any attempt to assign or transfer her structured settlement payment rights to Transferee. Previous transfers are identified in Exhibit A. A copy of the proposed Transfer Agreement and Disclosure Statement

required by Cal. Ins. Code section 10136(b) has been provided. A listing of the Payee's dependents, with each dependent's age, has been provided. Payee has one minor dependent.

Payee has submitted a copy of the Release and Settlement Agreement, Annuity Contract and the Uniform Qualified Assignment and Annuity Contract. Transferee has advised Payee of Payee's right to obtain the services of counsel, a licensed certified public accountant, or a licensed actuary in connection with the petition for an order approving the Transfer Agreement, that the Transferee shall pay the fees of the Payee's counsel, accountant, or actuary, regardless of whether the Transfer Agreement is approved, and regardless of whether the attorney, accountant or actuary files any document or appears at the hearing on the petition for transfer, in an aggregate amount not to exceed one thousand five hundred dollars (\$1,500).

Petitioner states that she understands the terms of the transaction, is entering into it under her own free will and volition, and without reservation, duress or undue influence. Payee requests that the Court find that the transaction is in her best interest.

The Court approves the Petition, but expresses some skepticism about Payee engaging in yet another sale of her structured settlement payments. The payments were a provident investment, meant to provide some security to Payee over the course of her life. Payee continues to diminish this asset, and does not seem to be using the funds to establish financial stability. This time, Payee intends to use these funds to purchase a vehicle and enroll in vocational school, which the Court applauds. The Court hopes Payee will stick with her plan and will not need to continue selling her future payments.

The Petition is granted.